

14CV8294

Henry Abraham

(In the space above enter the full name(s) of the plaintiff(s).)

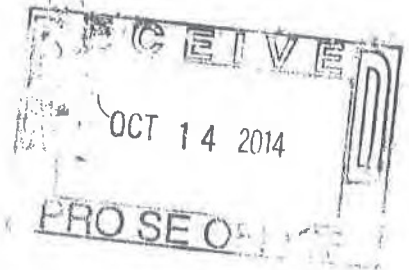
COMPLAINT

-against-

New York City Police Dept.
N.Y.P.D. Officer, Hugh Herbert
N.Y.P.D. Officer, James Lukeson
Kings County Court Judge Mark Dwyer
Kings County District Attorney's Office
New York City Dept. of Corrections.

Jury Trial: ☒ Yes ☐ No
(check one)

(In the space above enter the full name(s) of the defendant(s). If you cannot fit the names of all of the defendants in the space provided, please write "see attached" in the space above and attach an additional sheet of paper with the full list of names. The names listed in the above caption must be identical to those contained in Part I. Addresses should not be included here.)



I. Parties in this complaint:

- A. List your name, address and telephone number. If you are presently in custody, include your identification number and the name and address of your current place of confinement. Do the same for any additional plaintiffs named. Attach additional sheets of paper as necessary.

Plaintiff Name Henry Abraham, Din # 14A2332
Street Address Bare Hill Corr. Fac., 181 Brand Rd.
County, City Franklin, Malone
State & Zip Code New York 12953
Telephone Number _____

- B. List all defendants. You should state the full name of the defendant, even if that defendant is a government agency, an organization, a corporation, or an individual. Include the address where each defendant may be served. Make sure that the defendant(s) listed below are identical to those contained in the above caption. Attach additional sheets of paper as necessary.

Defendant No. 1 Name N.Y.P.D. Officers, Hugh Herbert & James Lukeson
Street Address 60th Precinct, 2951 W. 8th St.

County, City Kings, Brooklyn
State & Zip Code N.Y. 11224
Telephone Number -

Defendant No. 2 Name Mark Dwyer, Kings Co. Court Judge
Street Address 320 Jay St.
County, City Kings, Brooklyn
State & Zip Code N.Y. 11201
Telephone Number -

Defendant No. 3 Name Kings County District Attorney's Office
Street Address 350 Jay St.
County, City Kings, Brooklyn
State & Zip Code N.Y. 11201
Telephone Number -

Defendant No. 4 Name New York City Dept. of Corrections
Street Address 16-00 Hazen St.
County, City Queens, E. Elmhurst
State & Zip Code N.Y. 11370
Telephone Number -

II. Basis for Jurisdiction:

Federal courts are courts of limited jurisdiction. Only two types of cases can be heard in federal court: cases involving a federal question and cases involving diversity of citizenship of the parties. Under 28 U.S.C. § 1331, a case involving the United States Constitution or federal laws or treaties is a federal question case. Under 28 U.S.C. § 1332, a case in which a citizen of one state sues a citizen of another state and the amount in damages is more than \$75,000 is a diversity of citizenship case.

A. What is the basis for federal court jurisdiction? (check all that apply)

☒ Federal Questions

☒ Diversity of Citizenship

B. If the basis for jurisdiction is Federal Question, what federal Constitutional, statutory or treaty right is at issue? Civil Rights Violations, illegal & wrongful arrest,

Deprivation of character, Rights to a speedy trial,
invasion of privacy & Judicial Misconduct.

C. If the basis for jurisdiction is Diversity of Citizenship, what is the state of citizenship of each party?

Plaintiff(s) state(s) of citizenship New York

Defendant(s) state(s) of citizenship New York

III. Statement of Claim:

State as briefly as possible the facts of your case. Describe how each of the defendants named in the caption of this complaint is involved in this action, along with the dates and locations of all relevant events.

You may wish to include further details such as the names of other persons involved in the events giving rise to your claims. Do not cite any cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. Attach additional sheets of paper as necessary.

A. Where did the events giving rise to your claim(s) occur? When I was arrested & court proceedings & while at the Riker's Island Facility.

B. What date and approximate time did the events giving rise to your claim(s) occur? from the date of arrest on 6/6/12, thru May/June 2014!

When I was transferred to State Custody.

C. Facts: Upon my arrest for the crime that I am currently incarcerated for, in the beginning, I was illegally & wrongfully arrested by N.Y.P.D. officers, Hugh Herbert & James Lukeson! They threatened to kill me & were physical towards me, in every way. In the court proceedings, Judge Dwgen & Kings County District Attorney's (Janet Gleeson, Esq. & Matthew Bennett, Esq.) acted "biasedly" towards me during the Court proceedings & up to my sentencing! Janet Gleeson even was told to take the stand by the Court, against me & degraded my character. The New York City Dept. of Corrections, violated my constitutional rights, of invasion of my privacy by monitoring my phone calls, while I was detained on Riker's Island & violated my freedom of speech, with my family & friends. I have all the list of documents & all parties that were involved by a phone call documents, that proves the people they violated.

What happened to you?

Who did what?

Was anyone else involved?

Who else saw what happened?

IV. Injuries:

If you sustained injuries related to the events alleged above, describe them and state what medical treatment, if any, you required and received. when I was arrested, I was pushed to the ground from the back & the police officer, jumped on my back & neck. I was taken to the hospital in ambulance from the P.D. station, & had multiple concussions & bruises & my hand cut open, by what they did to me. I have the police report that proves this & the hospital records from Coney Island Hospital. I suffer from anxiety, depression & have a very bad scar on my hand & I continue to have back & neck pain from this incident. All defendants involved caused mental & physical damage to me.

V. Relief:

State what you want the Court to do for you and the amount of monetary compensation, if any, you are seeking, and the basis for such compensation.

Due to the Negligence & Police brutality & the wrongful acts of all the listed defendants involved, I am seeking the sum of:
\$50,000,000.00 (Fifty Million Dollars). I am also seeking "full reimbursement" of money that was taken from me during the frisk & of the arrest, as the N.Y.P.D. claimed I only had \$161.00 on my possession. I actually had \$3,000.00 in cash & the officer took the money. I am also in request to be assigned "Pro Bono" counsel, as I completely lack knowledge of the laws & I am completely financially stricken! I am seeking this sum of compensation due to the mental, physical injuries that I have received & know what they all did to me was in violation of all of my constitutional rights & characteristics!

I declare under penalty of perjury that the foregoing is true and correct.

Signed this 10th day of October, 2014.

Signature of Plaintiff

Th A

Mailing Address

Bane Hill Conn. Facility
Callen Box 20, 181 Brand Rd.
Malone, N.Y. 12953

Telephone Number

-

Fax Number (if you have one)

-

Note: All plaintiffs named in the caption of the complaint must date and sign the complaint. Prisoners must also provide their inmate numbers, present place of confinement, and address.

For Prisoners:

I declare under penalty of perjury that on this 10th day of October, 2014, I am delivering this complaint to prison authorities to be mailed to the *Pro Se* Office of the United States District Court for the Southern District of New York.

Signature of Plaintiff:

Th A

Inmate Number

14A2332

Current on Bloomberg Law as of June 9, 2016 15:21:28

U.S. District Court
Southern District of New York (Foley Square)
CIVIL DOCKET FOR CASE #: 1:14-cv-08294-LAP

Abraham v. New York City Police Dept. et al

Date Filed: Oct 14, 2014
Status: Closed
Nature of suit: 555 Prisoner: Prison Condition
Assigned to: Judge Loretta A. Preska
Cause: 42:1983 Prisoner Civil Rights
Date terminated: Sept 8, 2015
Jurisdiction: Federal Question
Jury demand: Plaintiff

Parties and Attorneys

Plaintiff

Henry Abraham

Attorneys and Firms

Henry Abraham
181 Brand Rd.
Malone, NY 12953
14A2332
Bare Hill Corr. Fac.
PRO SE

Defendant

New York City Police Dept.

Defendant

N.Y.P.D. Officer Hugh Herbert

Defendant

N.Y.P.D. Officer James Lukeson

Defendant

Mark Dwyer
Kings County Court Judge

Defendant

Kings County District Attorney's Office

Defendant

New York City Dept. of Corrections

Docket Entries

Reverse Entries

Numbers shown are court assigned numbers.

Entry #	Filing Date	Action	Description
1	Oct 14, 2014	View	COMPLAINT against Mark Dwyer, Hugh Herbert, Kings County District Attorney's Office, James Lukeson, New York City Dept. of Corrections, New York City Police Dept.. Document filed by Henry Abraham. (Attachments: # 1 Envelope)(moh) (Entered: 10/21/2014)
2	Oct 14, 2014	Request	REQUEST TO PROCEED IN FORMA PAUPERIS. Document filed by Henry Abraham. (Attachments: # 1 IFP Part 2)(moh) (Entered: 10/21/2014)
	Oct 14, 2014		Case Designated ECF. (moh) (Entered: 10/21/2014)
3	Oct 23, 2014	Request	ORDER DIRECTING PRISONER AUTHORIZATION: Plaintiff is directed to submit a completed and signed Prisoner Authorization Form to this Court's Pro Se Office within thirty (30) days of the date of this Order. The Clerk of Court is directed to assign this matter to my docket. The Court certifies, pursuant to 28 U.S.C. § 1915(a)(3), that any appeal from this Order would not be taken in good faith, and therefore in forma pauperis status is denied for the purpose of an appeal. See Coppedge v. United States, 369 U.S. 438, 444-45 (1962). Prisoner Authorization Form due by 11/24/2014. (Signed by Judge Loretta A. Preska on 10/23/2014) (Attachments: # 1 Prisoner Authorization form)(dmg) (Entered: 10/23/2014)
	Oct 23, 2014		Transmission to Docket Assistant Clerk. Transmitted re: 3 Order Directing Prisoner Authorization and attached Prisoner Authorization form to the Docket Assistant Clerk for case processing. (dmg) (Entered: 10/23/2014)
	Oct 23, 2014		Mailed a copy of 3 Order Directing Prisoner Authorization, to Henry Abraham 14A2332 Bare Hill Corr. Fac. 181 Brand Rd. Malone, NY 12953. (ca) (Entered: 10/23/2014)
	Oct 23, 2014		NOTICE OF CASE ASSIGNMENT - SUA SPONTE to Judge Loretta A. Preska. Judge Unassigned is no longer assigned to the case. (pgu) (Entered: 10/23/2014)
4	Oct 31, 2014	Request	PRISONER AUTHORIZATION Pursuant to PLRA. Document filed by Henry Abraham. (sc) (Entered: 11/03/2014)
5	Sept 8, 2015	View	TRANSFER ORDER: The Clerk of Court is directed to transfer this action to the United States District Court for the Eastern District of New York. The Clerk of Court is further directed to mail a copy of this order to Plaintiff, and note service on the docket. Whether Plaintiff should be permitted to proceed further without payment of fees is a determination to be made by the transferee court. This order supersedes the provision of Local Civil Rule 83.1 that requires a seven-day delay before the Clerk of Court may effectuate the transfer of the case to the transferee court. A summons shall not issue from this Court. The Court certifies, under 28 U.S.C. § 1915(a)(3), that any appeal from this order would

	not be taken in good faith, and therefore in forma pauperis status is denied for the purpose of an appeal. See Coppedge v. United States, 369 U.S. 438, 444-45 (1962). (As further set forth in this Order.) (Signed by Judge Loretta A. Preska on 9/8/2015) (kko) (Entered: 09/08/2015)
Sept 8, 2015	CASE TRANSFERRED OUT ELECTRONICALLY from the U.S.D.C. Southern District of New York to the United States District Court - Eastern District of New York. (kko) (Entered: 09/08/2015)
Sept 8, 2015	Transmission to Docket Assistant Clerk. Transmitted re: 5 Order, to the Docket Assistant Clerk for case processing. (kko) (Entered: 09/08/2015)
Sept 9, 2015	Mailed a copy of 5 Order, to Henry Abraham 14A2332 Bare Hill Corr. Fac. 181 Brand Rd. Malone, NY 12953. (ca) (Entered: 09/09/2015)
Sept 9, 2015	Received e-mail from the United States District Court - Eastern District of New York acknowledging receipt of transferred case. Assigned Case Number: 1:15-cv-05208, filed on 09/09/2015. (sjo) (Entered: 09/14/2015)

General Information

Court	United States District Court for the Southern District of New York; United States District Court for the Southern District of New York
Federal Nature of Suit	Prisoner Petitions - Prison Condition[555]
Docket Number	1:14-cv-08294
Status	Closed

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

HENRY ABRAHAM,

Plaintiff,

-against-

NEW YORK CITY POLICE DEPT.;
N.Y.P.D. OFFICER HUGH HERBERT;
N.Y.P.D. OFFICER JAMES LUKESON;
KINGS COUNTY COURTY JUDGE MARK
DWYER; KINGS COUNTY DISTRICT
ATTORNEY'S OFFICE; NEW YORK CITY
DEPT. OF CORRECTIONS,

Defendants.

14-CV-8294 (LAP)

TRANSFER ORDER

LORETTA A. PRESKA, Chief United States District Judge:

Plaintiff, currently incarcerated at Bare Hill Correctional Facility, brings this *pro se* action under 42 U.S.C. § 1983, alleging that Defendants violated his constitutional rights in Brooklyn, New York. For the following reasons, this action is transferred to the United States District Court for the Eastern District of New York.

DISCUSSION

Under the general venue provision, a civil action may be brought in “(1) a judicial district in which any defendant resides, if all defendants are residents of the State in which the district is located; (2) a judicial district in which a substantial part of the events or omissions giving rise to the claim occurred . . . ; or (3) if there is no district in which an action may otherwise be brought as provided in this section, any judicial district in which any defendant is subject to the court’s personal jurisdiction with respect to such action.” 28 U.S.C. § 1391(b). For venue purposes, a “natural person” resides in the district where the person is domiciled. 28 U.S.C. § 1391(c)(1).

Plaintiff filed this complaint alleging that from June 6, 2012 through May/June 2014, he was illegally and wrongfully arrested, and that his constitutional rights were violated during the pendency of his criminal proceedings. Plaintiff sues the New York City Police Department, which is located in this District, but Plaintiff does not allege that a substantial part of the events or omissions underlying his claim arose in this District.

Although venue may be proper here, the Court may transfer claims “[f]or the convenience of the parties and witnesses, in the interest of justice.” 28 U.S.C. § 1404(a). “[A]s the permissive language of the transfer statute suggests, district courts have ‘broad discretion’ to determine when party ‘convenience’ or ‘the interest of justice’ makes a transfer appropriate.” *Reese v. CNH America, LLC*, 574 F.3d 315, 320 (6th Cir. 2009). Moreover, courts may transfer cases on their own initiative. *See Bank of Am., N.A. v. Wilmington Trust FSB*, 943 F. Supp. 2d 417, 426 (S.D.N.Y. 2013) (“Courts have an independent institutional concern to see to it that the burdens of litigation that is unrelated to the forum that a party chooses are not imposed unreasonably on jurors and judges who have enough to do in determining cases that are appropriately before them. The power of district courts to transfer cases under Section 1404(a) *sua sponte* therefore is well established.”) (quoting *Cento v. Pearl Arts & Craft Supply Inc.*, No. 03-CV-2424, 2003 WL 1960595, at *1 (S.D.N.Y. Apr. 24, 2003)); *see also Lead Indus. Ass’n. Inc. v. OSHA.*, 610 F.2d 70, 79 n. 17 (2d Cir. 1979) (noting that “broad language of 28 U.S.C. § 1404(a) would seem to permit a court to order transfer *sua sponte*”).

In determining whether transfer is appropriate, courts consider the following factors: (1) the convenience of witnesses; (2) the convenience of the parties; (3) the locus of operative facts; (4) the availability of process to compel the attendance of the unwilling witnesses; (5) the

location of relevant documents and the relative ease of access to sources of proof; (6) the relative means of the parties; (7) the forum's familiarity with the governing law; (8) the weight accorded to plaintiff's choice of forum; (9) trial efficiency; and (10) the interest of justice, based on the totality of circumstances. *Keitt v. N.Y. City*, 882 F. Supp. 2d 412, 459–60 (S.D.N.Y. 2011); *see also N.Y. Marine and Gen. Ins. Co. v. LaFarge No. Am., Inc.*, 599 F.3d 102, 112 (2d Cir. 2010) (setting forth similar factors). A plaintiff's choice of forum is accorded less deference where the plaintiff does not reside in the chosen forum and the operative events did not occur there. *See Iragorri v. United Tech. Corp.*, 274 F.3d 65, 72 (2d Cir. 2001).

Under § 1404(a), transfer appears to be appropriate in this case because the underlying events occurred in Brooklyn, New York. Brooklyn, New York is located in Kings County, which falls within the Eastern District of New York. *See* 28 U.S.C. § 112(a). Venue is therefore proper in the Eastern District of New York. *See* 28 U.S.C. § 1391(b). Based on the totality of the circumstances, the Court concludes that it is in the interest of justice to transfer this action to the United States District Court for the Eastern District of New York. 28 U.S.C. § 1404(a).

CONCLUSION

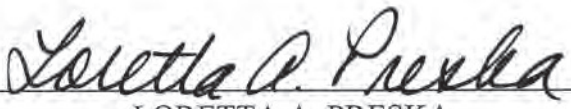
The Clerk of Court is directed to transfer this action to the United States District Court for the Eastern District of New York. The Clerk of Court is further directed to mail a copy of this order to Plaintiff, and note service on the docket. Whether Plaintiff should be permitted to proceed further without payment of fees is a determination to be made by the transferee court. This order supersedes the provision of Local Civil Rule 83.1 that requires a seven-day delay before

the Clerk of Court may effectuate the transfer of the case to the transferee court. A summons shall not issue from this Court.

The Court certifies, under 28 U.S.C. § 1915(a)(3), that any appeal from this order would not be taken in good faith, and therefore *in forma pauperis* status is denied for the purpose of an appeal. *See Coppedge v. United States*, 369 U.S. 438, 444–45 (1962).

SO ORDERED.

Dated: September 8, 2015
New York, New York


LORETTA A. PRESKA
Chief United States District Judge

General Information

Court	United States District Court for the Southern District of New York; United States District Court for the Southern District of New York
Federal Nature of Suit	Prisoner Petitions - Prison Condition[555]
Docket Number	1:14-cv-08294
Status	Closed

This docket is current through 08/01/2017

Current Date: 8/1/2017

Source: U.S. District Court, Eastern District of New York (Brooklyn)

Court: U.S. District Court, Eastern District of New York (Brooklyn)
Case Title: [Abraham v. New York City Police Dept. et al](#)
Case: 1:15-CV-05208
Judge: Judge Carol Bagley Amon
Date Filed: 09/08/2015
Other Dockets: Case in other court: New York Southern, 1:14-cv-08294
Date Closed/Terminated: 11/18/2016
Case Status: CLOSED, IFP, PROSE

CASE INFORMATION

Case Number: 1:15CV05208
Referred To: Magistrate Judge James Orenstein
Jury Demand: Plaintiff
Nature of Suit: Prisoner Petitions: Prison Condition (555)
Jurisdiction: Federal Question

PARTICIPANT INFORMATION

Henry Abraham

Type: Plaintiff
Attorney: Henry Abraham
Status: PRO SE
Attorney Address: # 14-A-2332
Bare Hill Correctional Facility
181 Brand Rd.
Caller Box # 20
Malone, NY 12953-0020

New York City Police Dept

Type: Defendant
Party Terminated: TERMINATED: 06/03/2016

Police Officer Hugh Herbert

Type: Defendant
Attorney: Kaitlin E. Fitzgibbon
Status: LEAD ATTORNEY; ATTORNEY TO BE NOTICED
Firm Name: New York City Law Department
Attorney Address: 100 Church Street
New York, NY 10007
Attorney Phone: 212-356-5057
Attorney Fax: 212-356-3559
Email Address: kfitzgib@law.nyc.gov

Police Officer James Lukeson

Type: Defendant
Attorney: Kaitlin E. Fitzgibbon
Status: LEAD ATTORNEY; ATTORNEY TO BE NOTICED
Firm Name: New York City Law Department
Attorney Address: 100 Church Street
New York, NY 10007
Attorney Phone: 212-356-5057
Attorney Fax: 212-356-3559
Email Address: kfitzgib@law.nyc.gov

Mark Dwyer

Party Description: Kings County Court Judge
Type: Defendant
Party Terminated: TERMINATED: 06/03/2016

Kings County District Attorney's Office

Type: Defendant
Party Terminated: TERMINATED: 06/03/2016

New York City Dept. of Corrections

Type: Defendant
Party Terminated: TERMINATED: 06/03/2016

Office of the Corporation Counsel

Type: Interested Party
Attorney: Kaitlin E. Fitzgibbon
Status: LEAD ATTORNEY; ATTORNEY TO BE NOTICED
Firm Name: New York City Law Department
Attorney Address: 100 Church Street
New York, NY 10007
Attorney Phone: 212-356-5057
Attorney Fax: 212-356-3559
Email Address: kfitzgib@law.nyc.gov

CALENDAR INFORMATION

[View Calendar Information](#)

DOCKET PROCEEDINGS (39)

Entry #:	Date:	Description:	
31	11/18/2016	STIPULATION AND ORDER OF DISMISSAL: IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, that the above-referenced action is hereby dismissed with prejudice. Ordered by Judge Carol Bagley Amon on 11/17/2016. (Fernandez, Erica) (Entered: 11/18/2016)	ViewBatch Download
30	11/16/2016	STIPULATION of Dismissal by Hugh Herbert, James Lukeson (Fitzgibbon, Kaitlin) (Entered: 11/16/2016)	ViewBatch Download
29	11/02/2016	Minute Entry for proceedings held before Magistrate Judge James Orenstein: Settlement Conference held on 11/2/2016. SCHEDULING: The next status conference will be held on December 2, 2016, at 12:30 p.m. SUMMARY: The parties agreed to settle the case. If they file a stipulation of dismissal no later than November 30, 2016, I will cancel the conference scheduled above; otherwise, I direct counsel for the defendants to initiate the telephone conference call. (Orenstein, James) Modified on 11/2/2016 (Guy, Alicia). (Entered: 11/02/2016)	ViewBatch Download
28	10/04/2016	ANSWER to 1 Complaint, by Hugh Herbert. (Fitzgibbon, Kaitlin) (Entered: 10/04/2016)	ViewBatch Download
27	09/28/2016	ORDER --- A settlement conference will be held in the above captioned case on November 2, 2016, at 9:30 a.m. before Magistrate James Orenstein. The Warden at Bare Hill Correctional Facility is respectfully directed to have the plaintiff, Mr. Abraham, available by telephone to participate. No later than October 31, 2016, please call Alicia Guy at (718) 613-2114 to confirm. Ordered by Magistrate Judge James Orenstein on 9/28/2016. c/m to Plaintiff and B.H.C.F. (Guy, Alicia) (Entered: 09/28/2016)	ViewBatch Download
26	09/22/2016	SCHEDULING ORDER: Plaintiff's disclosures and discovery requests due by:	ViewBatch Download

		December 2, 2016. Defendants' disclosures, discovery requests, and responses due by: January 3, 2017. Plaintiff's discovery responses due by: February 3, 2017. Status Conference: February 16, 2017, at 10:30 a.m. SEE ATTACHED ORDER. Ordered by Magistrate Judge James Orenstein on 9/22/2016. (Orenstein, James) (Entered: 09/22/2016)	
25	09/22/2016	Minute Entry for proceedings held before Magistrate Judge James Orenstein: Initial Conference Hearing held on 9/22/2016. SCHEDULING: (1) The next settlement conference will be held on November 2, 2016, at 9:30 a.m. (2) A status conference will be held on February 16, 2017, at 10:30 a.m. SUMMARY: (1) The defendants' counsel agreed to accept service on behalf of her client Officer Herbert, who is now deemed served. (2) The plaintiff will promptly execute a revised form, which the defendants' counsel has sent him, authorizing the release of pertinent medical records. (3) The parties will discuss settlement between now and the next conference scheduled above. (4) I will enter a separate case management and scheduling order. (5) I denied the plaintiff's request for appointed counsel. (6) I respectfully direct the defendants' counsel to promptly provide a copy of the attached minute order and of the case management and scheduling order to the plaintiff. (Orenstein, James) (Entered: 09/22/2016)	ViewBatch Download
	09/22/2016	ORDER denying 24 Motion to Appoint Counsel ; denying 22 Motion to Appoint Counsel. See docket entry 25 . Ordered by Magistrate Judge James Orenstein on 9/22/2016. (Guy, Alicia) (Entered: 09/27/2016)	
23	09/02/2016	ORDER re 22 Letter MOTION to Appoint Counsel filed by Henry Abraham -- The motion to adjourn is denied. I will discuss all other issues raised in the	ViewBatch Download

		plaintiff's letter at the conference. Ordered by Magistrate Judge James Orenstein on 9/2/2016. c/m to pro se plaintiff (Howley, Thomas) (Entered: 09/02/2016)	
24	09/01/2016	MOTION to Appoint Counsel; filed by pro se Henry Abraham, dated 8/26/2016. (Latka-Mucha, Wieslawa) (Entered: 09/06/2016)	ViewBatch Download
21	09/01/2016	ORDER granting 20 Motion to Adjourn Conference -- The motion is granted; the initial conference previously scheduled for September 12, 2016 is rescheduled for September 22, 2016 at 10:00 a.m. The Warden at Bare Hill Correctional Facility is respectfully directed to have the plaintiff, Mr. Abraham, available by telephone to participate. No later than September 20, 2016, please call Alicia Guy at (718) 613-2114 to confirm. Ordered by Magistrate Judge James Orenstein on 9/1/2016. c/m to pro se plaintiff (Howley, Thomas) (Entered: 09/01/2016)	ViewBatch Download
20	09/01/2016	Consent MOTION to Adjourn Conference by James Lukeson. (Fitzgibbon, Kaitlin) (Entered: 09/01/2016)	ViewBatch Download
22	08/31/2016	Letter / Request for an Adjournment of the Conference Scheduled for 9/12/2016, MOTION to Appoint Counsel, etc.; filed by pro se Henry Abraham, dated 8/26/2016. (Latka-Mucha, Wieslawa) (Entered: 09/02/2016)	ViewBatch Download
19	08/24/2016	ORDER denying 18 Motion to Adjourn Conference -- The motion is denied without prejudice to renewal after soliciting the plaintiff's consent as required. The fact that the plaintiff is incarcerated does not deprive him of the right to be heard on scheduling matters or relieve the defendants' counsel of the obligation to adhere to applicable procedural rules. Ordered by Magistrate Judge James Orenstein on 8/24/2016. c/m to pro se plaintiff (Howley, Thomas) (Entered: 08/24/2016)	ViewBatch Download
18	08/24/2016	First MOTION to Adjourn Conference by James Lukeson.	ViewBatch Download

17	08/17/2016	(Fitzgibbon, Kaitlin) (Entered: 08/24/2016) ORDER -- An Initial Conference will be held in the above captioned case on September 12, 2016, at 9:30 a.m. before Magistrate James Orenstein. The Warden at Bare Hill Correctional Facility is respectfully directed to have the plaintiff, Mr. Abraham, available by telephone to participate. No later than September 8, 2016, please call Alicia Guy at (718) 613-2114 to confirm. Ordered by Magistrate Judge James Orenstein on 8/17/2016. c/m to plaintiff and Warden (Guy, Alicia) (Entered: 08/17/2016)	ViewBatch Download
16	08/17/2016	SCHEDULING ORDER: I will hold an initial discovery planning conference pursuant on September 12, 2016, at 9:30 a.m. in Courtroom 11D South on the 11th floor of the United States Courthouse, 225 Cadman Plaza East, Brooklyn, New York. Because the plaintiff is proceeding without counsel, I will not require the parties to engage in a formal meeting in advance of the conference. However, I encourage the parties to meet, in person or by telephone, before the date of the conference to discuss the types of information each side will need to prepare for trial (such as documents, photographs, interviews of potential fact witnesses, medical or other examinations, and expert reports) as well as the information each already has and expects to present. SEE ATTACHED ORDER. Ordered by Magistrate Judge James Orenstein on 8/17/2016. c/m to plaintiff (Guy, Alicia) (Entered: 08/17/2016)	ViewBatch Download
15	08/16/2016	ANSWER to 1 Complaint, by James Lukeson. (Fitzgibbon, Kaitlin) (Entered: 08/16/2016)	ViewBatch Download
14	07/29/2016	SUMMONS Returned Executed on behalf of pro se Henry Abraham. Police Officer James Lukeson served on 7/26/2016, answer due 8/16/2016. (Latka-	ViewBatch Download

13	07/29/2016	Mucha, Wieslawa) (Entered: 08/02/2016) SUMMONS Returned Unexecuted as to Police Officer Hugh Herbert. See Remarks on USM-285 Form: "Endeavor 1 - Not at this precinct [...]" (Latka-Mucha, Wieslawa) (Entered: 08/02/2016)	ViewBatch Download
12	06/20/2016	NOTICE of Appearance by Kaitlin E. Fitzgibbon on behalf of Office of the Corporation Counsel (aty to be noticed) (Fitzgibbon, Kaitlin) (Entered: 06/20/2016)	ViewBatch Download
11	06/03/2016	SUMMONS ISSUED as to Police Officer Hugh Herbert; and Police Officer James Lukeson. (Courtesy Copy sent to the Office of the Corporation Counsel via first class mail.) (Latka-Mucha, Wieslawa) (Entered: 06/03/2016)	ViewBatch Download
10	06/03/2016	MEMORANDUM & ORDER: Plaintiff Henry Abraham's 2 request for in forma pauperis status pursuant to 28 U.S.C. § 1915 is granted. Abraham's claims against the New York City Police Department, the New York City Department of Correction, the Honorable Mark Dwyer, and the Kings County District Attorney's Office as well as his false arrest, wrongful deprivation of property, prosecutorial and judicial misconduct, and telephone monitoring claims are dismissed. No summons shall issue as to these defendants and the Clerk of Court is directed to correct the docket to reflect their dismissal. Abraham's excessive force claim against NYPD Officers Hugh Herbert and James Lukeson may proceed. The Clerk of the Court is directed to issue summonses against these defendants at the address provided in the complaint (60th Precinct, 2951 8th Street, Brooklyn, New York) and the United States Marshals Service is directed to serve the complaint and this Order on the defendants without prepayment of fees. The Clerk of Court shall mail a courtesy copy of the complaint and this Order	ViewBatch Download

		to the Corporation Counsel for the City of New York, Special Federal Litigation Division. The Court certifies pursuant to 28 U.S.C. § 1915(a)(3) that any appeal from this Order would not be taken in good faith and therefore in forma pauperis status is denied for the purpose of an appeal. SO ORDERED by Judge Carol Bagley Amon, on 6/3/2016. (Parties: New York City Police Department; New York City Department of Corrections; Kings County Court Judge Mark Dwyer; and Kings County District Attorney's Office terminated.) C/mailed. (Latka-Mucha, Wieslawa) (Entered: 06/03/2016)	
9	09/29/2015	Bare Hill Correctional Facility's Statement regarding NYS Inmate (# 14-A-2332) Henry Abraham's Prison Trust Fund Account for Case # 15-CV-5208(CBA)(JO). (Fernandez, Erica) (Entered: 09/29/2015)	ViewBatch Download
8	09/15/2015	Pursuant to 28 U.S.C. § 1915 (as amended July 26, 1996), plaintiff is proceeding in forma pauperis and must pay the total \$ 350 fee by monthly installments deducted from plaintiff's prison trust fund account (or institutional equivalent). W/Attachments: # 1 Prisoner Authorization. (Original letter sent to the Warden of Bare Hill Correctional Facility - via first class mail.) (Latka-Mucha, Wieslawa) (Entered: 09/16/2015)	ViewBatch Download
7	09/09/2015	In accordance with Rule 73 of the Federal Rules of Civil Procedure and Local Rule 73.1, the parties are notified that if all parties consent a United States magistrate judge of this court is available to conduct all proceedings in this civil action including a (jury or nonjury) trial and to order the entry of a final judgment. Attached to the Notice is a blank copy of the consent form that should be filled out, signed and filed electronically only if all parties wish to consent. The form may also be accessed at the following link: http://www.uscourts.gov/uscourts/FormsAndFees/Forms/	ViewBatch Download

		AO085.pdf. You may withhold your consent without adverse substantive consequences. Do NOT return or file the consent unless all parties have signed the consent. (Gillespie, Saudia) (Entered: 09/09/2015)	
6	09/09/2015	Case transferred in from District of New York Southern; Case Number 1:14-cv-08294. Original file certified copy of transfer order and docket sheet received. (Entered: 09/09/2015)	ViewBatch Download
5	09/08/2015	TRANSFER ORDER: The Clerk of Court is directed to transfer this action to the United States District Court for the Eastern District of New York. The Clerk of Court is further directed to mail a copy of this order to Plaintiff, and note service on the docket. Whether Plaintiff should be permitted to proceed further without payment of fees is a determination to be made by the transferee court. This order supersedes the provision of Local Civil Rule 83.1 that requires a seven-day delay before the Clerk of Court may effectuate the transfer of the case to the transferee court. A summons shall not issue from this Court. The Court certifies, under 28 U.S.C. § 1915(a)(3), that any appeal from this order would not be taken in good faith, and therefore in forma pauperis status is denied for the purpose of an appeal. See Coppedge v. United States, 369 U.S. 438, 444-45 (1962). (As further set forth in this Order.) (Signed by Judge Loretta A. Preska on 9/8/2015) (kko) [Transferred from New York Southern on 9/9/2015.] (Entered: 09/08/2015)	ViewBatch Download
	09/08/2015	Transmission to Docket Assistant Clerk. Transmitted re: 5 Order, to the Docket Assistant Clerk for case processing. (kko) [Transferred from New York Southern on 9/9/2015.] (Entered: 09/08/2015)	
	09/08/2015	CASE TRANSFERRED OUT ELECTRONICALLY from the U.S.D.C. Southern District of New York to the United States	

4	10/31/2014	District Court - Eastern District of New York. (kko) [Transferred from New York Southern on 9/9/2015.] (Entered: 09/08/2015) PRISONER AUTHORIZATION Pursuant to PLRA. Document filed by Henry Abraham. (sc) [Transferred from New York Southern on 9/9/2015.] (Entered: 11/03/2014)	ViewBatch Download
3	10/23/2014	ORDER DIRECTING PRISONER AUTHORIZATION: Plaintiff is directed to submit a completed and signed Prisoner Authorization Form to this Court's Pro Se Office within thirty (30) days of the date of this Order. The Clerk of Court is directed to assign this matter to my docket. The Court certifies, pursuant to 28 U.S.C. § 1915(a)(3), that any appeal from this Order would not be taken in good faith, and therefore in forma pauperis status is denied for the purpose of an appeal. See Coppedge v. United States, 369 U.S. 438, 444-45 (1962). Prisoner Authorization Form due by 11/24/2014. (Signed by Judge Loretta A. Preska on 10/23/2014) (Attachments: # 1 Prisoner Authorization form) (dmg) [Transferred from New York Southern on 9/9/2015.] (Entered: 10/23/2014)	ViewBatch Download
	10/23/2014	NOTICE OF CASE ASSIGNMENT - SUA SPONTE to Judge Loretta A. Preska. Judge Unassigned is no longer assigned to the case. (pgu) [Transferred from New York Southern on 9/9/2015.] (Entered: 10/23/2014)	
	10/23/2014	Mailed a copy of 3 Order Directing Prisoner Authorization, to Henry Abraham 14A2332 Bare Hill Corr. Fac. 181 Brand Rd. Malone, NY 12953. (ca) [Transferred from New York Southern on 9/9/2015.] (Entered: 10/23/2014)	
	10/23/2014	Transmission to Docket Assistant Clerk. Transmitted re: 3 Order Directing Prisoner Authorization and attached Prisoner Authorization form to the Docket Assistant Clerk for case processing. (dmg) [Transferred	

2	10/14/2014	from New York Southern on 9/9/2015.] (Entered: 10/23/2014) REQUEST TO PROCEED IN FORMA PAUPERIS. Document filed by Henry Abraham. (Attachments: # 1 IFP Part 2) (moh) [Transferred from New York Southern on 9/9/2015.] (Entered: 10/21/2014)	ViewBatch Download
1	10/14/2014	COMPLAINT against Mark Dwyer, Hugh Herbert, Kings County District Attorney's Office, James Lukeson, New York City Dept. of Corrections, New York City Police Dept.. Document filed by Henry Abraham. (Attachments: # 1 Envelope)(moh) [Transferred from New York Southern on 9/9/2015.] (Entered: 10/21/2014)	ViewBatch Download
	10/14/2014	MOTION for Leave to Proceed in forma pauperis see docket entry #2 by Henry Abraham. (Gillespie, Saudia) (Entered: 09/09/2015)	
	10/14/2014	Case Designated ECF. (moh) [Transferred from New York Southern on 9/9/2015.] (Entered: 10/21/2014)	

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UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

----- X
HENRY ABRAHAM,

Plaintiff,

**STIPULATION AND
ORDER OF DISMISSAL**

-against-

15-CV-5208 (CBA) (JO)

N.Y.P.D OFFICER HUGH HERBERT; and N.Y.P.D.
OFFICER JAMES LUKESON,

Defendants.
----- X

WHEREAS, the parties have reached a settlement agreement and now desire to resolve the remaining issues raised in this litigation, without further proceedings and without admitting any fault or liability;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, that the above-referenced action is hereby dismissed with prejudice.

Dated: New York, New York

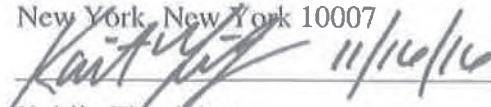
Nov. 9, 2016

Henry Abraham #14-A-2332
Plaintiff Pro Se
181 Brand Rd.
Caller Box #20
Malone, NY 12953-0020

By: 

Henry Abraham
Plaintiff Pro Se

ZACHARY W. CARTER
Corporation Counsel of the
City of New York
Attorney for Defendants Herbert & Lukeson
100 Church Street, 3rd Floor
New York, New York 10007

By:  11/16/16

Kaitlin Fitzgibbon
Assistant Corporation Counsel

SO ORDERED:

HON. CAROL B. AMON
UNITED STATES DISTRICT JUDGE

Dated: _____, 2016

FILED
IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.

★ NOV 18 2016 ★

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

----- x **BROOKLYN OFFICE**

HENRY ABRAHAM,

Plaintiff,

**STIPULATION AND
ORDER OF DISMISSAL**

-against-

15-CV-5208 (CBA) (JO)

N.Y.P.D OFFICER HUGH HERBERT; and N.Y.P.D.
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Dated: New York, New York
Nov. 9, 2016

Henry Abraham #14-A-2332
Plaintiff Pro Se
181 Brand Rd.
Caller Box #20
Malone, NY 12953-0020

By: 

Henry Abraham
Plaintiff Pro Se

ZACHARY W. CARTER
Corporation Counsel of the
City of New York
Attorney for Defendants Herbert & Lukeson
100 Church Street, 3rd Floor
New York, New York 10007

By: 

Kaitlin Fitzgibbon
Assistant Corporation Counsel

SO ORDERED:

s/Carol Bagley Amon

HON. CAROL B. AMON
UNITED STATES DISTRICT JUDGE

Dated: Nov. 17, 2016